

Line 12

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

BRANDI DAVIS and DELICA AMEMOWOTO,
individually and as Heirs and Successors-in-
Interest to PEGGY DAVIS, Deceased,

Plaintiffs,

v.

CIRBY HOLDINGS, LLC dba MOUNTAIN VIEW
HEALTHCARE CENTER; and DOES 1-50,

Defendants.

Case No. 25CV460115

**ORDER GRANTING DEFENDANT'S
PETITION TO COMPEL ARBITRATION**

Cirby Holdings, LLC dba Mountain View Healthcare Center's petition to compel arbitration first came on for hearing before the Court on August 5, 2025. The Court issued a tentative ruling ordering the following:

1. The hearing on Mountain View's petition to compel arbitration is continued to September 4, 2025 at 9 a.m. in Department 6;
2. On or before August 22, 2025 Mountain View is ordered to submit a further sworn statement describing the process by which the Arbitration Agreement was electronically signed; and
3. Plaintiffs may submit a response to Mountain View's further statement on or before August 29, 2025.
4. The parties' further statements shall be filed, served, and emailed to

Department6@scscourt.org.

No party appeared to contest that tentative ruling, and on August 22, 2025, Defendant filed the Supplemental Declaration of Bryant Yerena in Support of Defendant's Petition to Compel Arbitration. Plaintiff did not submit any further materials. Now having a complete record, the Court issues its final ruling.

I. Alleged Facts

Brandi David and Selica Amemowoto, individually and as heirs and successors-in-interest to Peggy Davis, who is deceased, brought this action on February 28, 2025 against Cirby Holdings, LLC d/b/a Mountain View Healthcare Center for (1) negligence, (2) violations of the elder and dependent adult civil protection act, (3) violations of resident rights, and (4) wrongful death.

Plaintiffs allege Mountain View failed to adequately care for Ms. Davis by failing to implement safeguards to protect Ms. Davis from falls, to take any reasonable action regarding feeding Ms. Davis, to provide any reasonable care regarding Ms. Davis's significant lung condition and sleep apnea, and to adequately staff and supervise Ms. Davis's care. Plaintiffs further allege:

On or about April 30, 2024, Ms. DAVIS's daughter arrived to find her mother disoriented and hallucinating and she called 911 for emergency services due to significantly low oxygen levels. Ms. DAVIS's oxygen levels were repeatedly and dangerously low leading up to April 30, 2024. Ms. DAVIS's family was never advised of her deteriorating change in condition. On or about April 30, 2024, Ms. DAVIS was transferred to Stanford Healthcare in Stanford, California. At that time she was diagnosed with acute respiratory pneumonia, a frontal brain bleed, lung failure and she was severely dehydrated and malnourished. Ms. DAVIS was never able to recover and she passed away on May 10, 2024 from acute hypoxic respiratory failure and aspiration pneumonia. (Complaint, ¶10.)

Mountain View asserts Ms. Davis's daughter, Brandi Davis, signed an arbitration agreement in both her individual and representative capacity that requires these claims be arbitrated. The arbitration agreement is set out in a separate document titled "ABITRATION AGREEMENT" and

states at the top: "Residents shall not be required to sign this arbitration agreement as a condition of admission to this facility." The agreement provides:

Article 1. It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contract were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered, will be determined by submission to arbitration as provided by California law, and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. Both parties to this contract, by entering into it, are giving up their constitutional right to have any such dispute decided in a court of law before a jury, and instead are accepting the use of arbitration.

Article 2. It is further understood that any dispute between Resident and Cirby Holdings, LLC dba Mountainview Healthcare Center, its owners, operators, officers, directors, administrators, staff, employees, agents, and any management and administrative services company and consulting vendors, and all related entities and individuals, their staff, personnel, employees, owners, officers, directors, members, and agents that provide services to the Facility that relates to the provision of care, treatment and services the Facility provides to the Resident, (collectively referred to herein as "Facility"), including any action for injury or death arising from negligence, intentional tort and/or statutory causes of action (including all California Welfare and Institutions Code sections and Health and Safety Code section 1430), will be determined by submission to binding arbitration and not by lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. The parties to this agreement are giving up their Constitutional right to have all disputes decided in a court of law before a jury, and instead are accepting the use of binding arbitration. By signing this agreement, the parties waive their right to commence and/or be a party to any

class or collective action in any court against the other party relating in any manner to the Resident's residency at the Facility. Further, the parties waive their right to commence or be a party to any group, class, or collective action claim in arbitration or any other forum.

Article 3. The execution of this Arbitration Agreement is not a precondition to receiving medical treatment, care, services and/or for admission to the Facility and is not a requirement to continue to receive medical treatment, care and services at the Facility.

Article 4. This Agreement shall be binding for any and all disputes arising out of the Resident's residency at the Facility, except for disputes pertaining to collections or evictions. ***This Agreement is binding on all parties, including the Resident's representatives, executors, family members, and heirs who bring any claims individually or in a representative capacity. The Resident's representatives, agents, executors, family members, successors in interest and heirs who execute this Agreement below on the signature line are doing so not only in their representative capacity for the Resident, but also in their individual capacity and thus agree that any claims brought individually by any such representatives, agents, executors, family members, representatives, successors in interest and heirs are subject to binding arbitration.*** This Agreement may be rescinded by written notice within thirty (30) days of signature.

Article 5. Retroactive Effect. It is agreed by and between the parties hereto that this Agreement covers services rendered before the date this contract is signed, thus making this contract effective as of the date of the Resident's first admission to the Facility.

Article 6. The parties to this Agreement agree that California substantive law, including California Code of Civil Procedure §667.7 and Civil Code §§3333.1 -3333.2 applies to any and all claims arising out of the care,

treatment and services provided to the Resident by the Facility, unless otherwise required by law. ***California Code of Civil Procedure §1281.2(c) is excluded from this Agreement as the parties mutually desire to have any and all disputes submitted to binding arbitration and do not want any claims not subject to arbitration to impede any and all other claims from being ordered to binding arbitration.*** The expenses and fees of the arbitrator shall be apportioned equally among all parties except as otherwise required by law.

Article 7. This Agreement relates to the Resident's admission to the Facility, and the Facility, among other things, participates in the Medicare and/or Medi-Cal programs and/or procures supplies from out of state vendors. The parties, therefore, agree that the underlying admission to the Facility involves interstate commerce. Accordingly, ***this Agreement is to be governed by the Federal Arbitration Act and the procedural rules set forth in the Federal Arbitration Act (9 U.S.C. Sections 1-16) shall govern any petition to compel arbitration and the selection of an arbitrator, should the parties be unable to mutually agree upon the appoint of a single neutral arbitrator.*** The arbitration shall be venued in a location convenient for all parties, normally the county where the Facility is located.

Article 8. If any provision in this Agreement is held invalid, such holding shall not impact the validity of the remaining provisions of this Agreement. The Resident and/or the person executing this Agreement certifies that he/she has read this Agreement, it has been explained in a manner he/she understands, has been given a copy of this Agreement, understands this Agreement, and affirmatively represents that he/she is duly authorized, by virtue of the Resident's consent, instruction and/or durable power of attorney, to execute this Agreement and accept its terms on behalf of the Resident and individually and acknowledges that the Facility is relying on the

aforementioned certification. (Bold, italics added.)

Above the signature line, the agreement states in bold, red, all caps: “NOTICE: BY SIGNING THIS CONTRACT YOU ARE AGREEING TO HAVE ANY ISSUE OF MEDICAL MALPRACTICE DECIDED BY NEUTRAL ARBITRATION AND YOU ARE GIVING UP YOUR RIGHT TO A JURY OR COURT TRIAL. SEE ARTICLE 1 OF THIS CONTRACT.” Below the signature line, the agreement states: “Signature on behalf of Resident and as an Individual”.

Brandi filed a declaration after Mountain View submitted its reply brief, swearing under oath: “The signature on the arbitration agreement attached as Exhibit B to the Declaration of Bryant Yarena is not mine and is electronic. I never signed any arbitration agreement in connection with my mother’s stay at Mountain View Healthcare and I specifically told a representative from Mountain View that I would not sign an Arbitration Agreement.”

Cirby Holdings submits a supplemental declaration from their Admissions Director of Mountain View Healthcare Center, which declaration explains the process by which Brandi signed the arbitration agreement. Defendant uses PointClickCare (“PCC”) which utilizes OneSpan software to obtain and store electronic signatures. The audit trail for the arbitration agreement here indicates that the email address Davisbrandi970@yahoo.com was used by the signer to access the secure link through which the document was assigned. Attached to the Supplemental Yerna Declaration is the signature workflow for PCC, which provides the following further details for obtaining secure, authentic signatures:

1. Invitation & Access

- When a document in PCC Document Manager is sent for signature, OneSpan generates a secure email link that is unique to the signer.
- This link is tokenized (contains a unique encrypted identifier) and cannot be reused or forwarded without invalidating the chain of custody.
- The signer receives the email directly from OneSpan’s secure system (not PCC), ensuring origin authenticity.

2. Signer Authentication

- The recipient must access the document only through the secure email link tied to their identity.

3. Signature & Binding

- Once inside OneSpan, the signer applies their electronic signature by clicking/tapping in the designated fields.
- At this point, OneSpan applies a digital certificate and cryptographic seal binding the signature to the document.

4. Audit Trail

- A comprehensive audit log is created, showing:
 - o Date/time of secure email delivery.
 - o IP address and device information used to access the link.
 - o Actions taken (opened, reviewed, signed).
- This audit log is stored alongside the signed document in PCC Document Manager.

5. Document Finalization

- Once all required signatures are complete, the document is sealed and rendered read-only.
- Any attempt to alter the document post-signature invalidates the cryptographic seal and is immediately detectable.

II. Legal Standard

In a motion to compel arbitration, the Court must determine “(1) whether there is a valid agreement to arbitrate between the parties; and (2) whether the dispute in question falls within the scope of that arbitration agreement.” (*Bruni v. Didion* (2008) 160 Cal. App. 4th 1272, 1283 (citations omitted).) “The petitioner bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination. [Citation.]” (*Bruni*, 160 Cal. App. 4th at 1282 (citations omitted).)

Code of Civil Procedure section 1281.2 states: “the court shall order a matter to arbitration if it determines that there is an agreement to arbitrate and (1) the agreement has not been waived or (2) the agreement has not been revoked.” (See also *Cinel v. Barna* (2012) 206 Cal.App.4th 1383, 1389.) “[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232

Cal.App.4th 836, 842.)

III. Analysis

First, the gravamen of the complaint is that Mountain View failed to meet the standard of care when Ms. Davis was resident there. Plaintiffs' attempt to characterize their claims otherwise cannot avoid this fact. (*See Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 353; *Holland v. Silverscreen Healthcare, Inc.* (2024) 101 Cal.App.5th 1125, 1133-1134.)

Next, "[i]n *Ruiz v. Podolsky*, [2010] 50 Cal.4th 838 (*Ruiz*), the Supreme Court held all heirs in wrongful death actions are bound by arbitration agreements under Code of Civil Procedure section 1295, when the language of the agreement manifests an intent to bind the heirs. (*Ruiz*, at p. 841; *Holland v. Silverscreen Healthcare, Inc.*, *supra*, 101 Cal.App.5th 1125, 1132 (*Holland*) ["*Ruiz* concluded 'that section 1295, construed in light of its purpose, is designed to permit patients who sign arbitration agreements to bind their heirs in wrongful death actions'"].)" (*Enmark v. KF Community Care, LLC* (2024) 105 Cal.App.5th 463, 476.) The language in the arbitration agreement here unequivocally places this case within the *Ruiz* holding.

The arbitration agreement also makes clear in Article 4 and again at the signature line that Brandi was signing both on behalf of her mother and in her individual capacity. Thus, Brandi's arguments in opposition that her own claims are not subject to arbitration fails.

Code of Civil Procedure section 1281.2 is inapplicable given the parties' express agreement to exclude its application at the time the arbitration agreement was formed. Agreements to arbitrate are contracts subject to the same tools of interpretation as all contracts. Where the parties enter an express agreement related to arbitration, the courts are bound to enforce it. (*See Gloster v. Sonic Automotive, Inc.* (2014) 226 Cal.App.4th 438 (parties' arbitration agreement provided "the court may not refuse to enforce this arbitration agreement and may not stay the arbitration proceeding despite the provisions of California Code of Civil Procedure § 1281.2[, subdivision] (c).").)

This leaves Brandi's argument that the signature on the arbitration agreement is electronic, not hers, and she expressly told Mountain View that she would not sign an arbitration agreement. As noted in the Court's prior ruling, the Court finds it extremely suspect that Brandi failed to make this representation in her opposition. If she never signed this agreement and "specifically told a

representative from Mountain View that [she] would not sign an Arbitration Agreement” this seems like it would be the very first defense to arbitrating these claims. But Brandi did not make this argument or even allude to it in her opposition. Instead, Brandi focused on more technical legal arguments regarding individual vs. representative capacity and the characterization of the asserted claims. In fact, at page 2 of Plaintiffs’ opposition, Plaintiffs state: “***March 15, 2024: Mountain View presented an arbitration agreement to Brandi Davis, which she signed as attorney-in-fact for her mother.***” (Emphasis added.)

However, Mountain View bears the burden to “prove the authenticity of the signature on the arbitration agreement. (See *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842 [181 Cal. Rptr. 3d 781] (Ruiz).) A proponent seeking to authenticate an electronic signature must show the electronic signature ““was the act of the person,”” which could be shown ““in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.”” (*Id.* at p. 843, italics omitted; see Civ. Code, § 1633.9, subd. (a).) For example, a party may present evidence that the signatory was required to use a unique, private login and password to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions. (*Espejo, supra*, 246 Cal.App.4th at p. 1062.)” (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal. App. 5th 41, 53.)

Mountain View’s supplemental declaration adequately meets this requirement. Brandi has no response. The Court finds Brandi did sign the arbitration agreement.

Mountain View’s motion to compel arbitration is accordingly GRANTED.

The November 26, 2025 case management conference is VACATED. A status conference regarding the arbitration is set for March 26, 2026 at 10:00 a.m. in Department 6.

IT IS SO ORDERED.

Date: _____

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge